Subject index

Begin with a subject below or use the alphabetical entries. The groupings are editorial browsing aids; a concept may belong to several subjects. Each subentry links to its exact numbered passage.

Purpose, method and knowledge

The aims of uṣūl, disciplined inquiry, and the difference between certainty and probable judgement.

Knowledge · Certainty · Probability (ẓann)

Rulings, actions and responsibility

Kinds of ruling, the conditions of responsibility, and the validity or consequences of actions.

Obligation · Legal responsibility (taklīf) · Validity

Sources and legal authority

Revelation, consensus and original nonliability, with questions of authority, continuity and abrogation.

Qurʾān · Consensus (ijmāʿ) · Original nonliability (barāʾa)

Reports, transmission and reliability

How reports are transmitted, evaluated and used as evidence.

Solitary reports · Probity (ʿadāla) · Written transmission

Language, grammar and interpretation

Wording, context, grammar, commands and the interpretation of legal expressions.

Interpretation (taʾwīl) · Generality · Commands (amr)

Inference, analogy and legal grounds

The grounds and methods used to extend, establish or distinguish rulings.

Analogy · Effective ground (ʿilla) · Testing and division

Juristic expertise, disagreement and error

Independent inquiry, following authority, conflicting evidence and the responsibility of the jurist.

Ijtihād · Taqlīd · Correctness and error

Legal examples and applications

Concrete cases from worship, family life, transactions and injuries, including editorial Bidāya applications.

Purification · Marriage · Bidāya applications

Alphabetical index

Abrogation (naskh)
what remains after removal of obligation · §26
prohibition of wine · §40
Qurʾān and Sunna · §114
definitions · §115
before performance · §115
fact established by transmission · §116
parts and conditions · §117
addition to a text · §118
replacement not required · §119
greater and lesser burdens · §120
recitation and ruling · §121
cessation of revelation · §122
mass and solitary reports · §123
Qurʾān by Sunna · §124
analogy excluded · §126
mistaken classifications · §127
constitutive conditions · §128
express declaration · §129
continuity of texts · §142
requisite knowledge · §232
unknown chronology and apparent conflict · §247

Absence of evidence
not simply a positive proof · §141

Abū Ḥanīfa
restrictions on analogy · §219

Acquisition (kasb)
choice and compliance · §43
voluntary contraries · §44
critique of al-Ashʿarī · §45

Acts
forms and conditions · §206

Additional wording (ziyāda)
reliable narrator · §108

A fortiori indication
priority of the unspoken case · §215

Al-Zarkashī
editorial supplements · §110

Ambiguity
multiple meanings and apparent contradiction · §65

Analogy
passage from observed to unobserved · §2
disputed authority · §6
suitability and plausible grounds · §11
analogy with testimony · §82
competing original cases · §95
comparison with report authority · §112
transition from linguistic indications · §209
definition · §210
original and derivative cases · §210
semantic extension rather than syllogism · §212 · §223
degrees of evidential force · §214
certain extension · §215
equality of the derivative case · §216
resemblance (shabah) · §218
alleged Companion consensus · §225
place among legal indications · §226

Apostasy
make-up performance · §51

Apparent meaning (ẓāhir)
classification · §151
understood meaning · §155
authority · §166
understood rather than verbal · §224

Ashʿarī, al-
Ibn Rushd’s criticism · §45

ʿĀshūrāʾ
fast and Ramaḍān · §120

Assent (taṣdīq)
miracles and recurrent transmission · §15
necessity and motivation · §44
degrees produced by reports · §74
implicit premises · §76
certainty · §78
strength of transmission · §125
degrees of evidence · §159

Assertions
compound expressions · §156
conclusion · §196

Atom
indivisible part · §2

Attestation (taʿdīl)
organization · §94
number · §95
reasons · §96
express and implicit · §97

Authenticity
knowledge of a route · §104

Authority
rulers and parents · §37

Authorization (ijāza)
transmission · §103
relation to munāwala · §104

Authorship and method
abridgment of al-Mustaṣfā · §1 · §7
historical need for uṣūl · §3
fourfold organization · §5
proper subject of uṣūl · §6 · §148
comparative reconstruction of schools · §6
purpose, rank, and divisions · §8
limits of theological discussion · §20
organization of linguistic inquiry · §30
avoiding misplaced digressions · §41
transition to sources · §61
limits of theological inquiry · §116
brevity and sufficiency · §140
completion of sources · §147

Bāqillānī, al- (the Qāḍī)
definition of make-up performance · §59

Basmala
Qurʾānic status and recitation in prayer · §64

Benefit (maṣlaḥa)
attestation of kind · §146
proximity of the relevant genus · §213
recognised goods and proximate genus · §217
rejected remote or unrestricted grounds · §217
recognised proximate genus · §224

Bequests
no bequest for an heir · §121 · §124

Bidāya applications

Marriage: one form of act, different legal rulings · §18

Wiping the head: a minimum performance and a contested particle · §23

Proposing over another proposal: prohibition and contractual effect · §28

Zakāt on a child's property: worship or a claim upon wealth? · §38

Intention in ablution: devotional act and intelligible cleansing · §43

Coerced divorce: voluntary utterance is not sufficient freedom · §47

Financial maturity: an operative condition or its official recognition? · §55

A remoter guardian: invalidity, permission, or ratification · §56

A traveller who fasts: an implied condition in the verse · §58

The basmala: Qurʾānic wording and membership in a sūra · §64

An absent father: welfare within a structured legal situation · §146

Touching women: equivocation, generality and counterevidence · §158

Minimum dower: clarification cannot be postponed beyond need · §160

The sales-session option: what counts as "separation"? · §167

Guardianship: a disputed condition cannot be established by ambiguity alone · §171

Pilgrimage now or later: a control against a simplistic application · §201

Completing ʿumra does not by itself prove an initial duty to begin it · §204

Menstrual divorce: a forbidden act may still have legal effect · §206

Foetal compensation: the identity of the right-holder matters · §211

Jewellery: resemblance to usable possessions or to monetary wealth? · §214

Deathbed divorce: blocking an evasion without erasing doctrinal difficulty · §217

Ribā in foodstuffs: competing identifications of the operative feature · §218

Dower and the theft threshold: verbal resemblance is not one legal meaning · §223

Triple divorce after mutual imprecation: the limits of tacit approval · §227

A mistaken qibla: required success or adequately conducted inquiry? · §237

A physician's mistake: compensation need not imply moral wrongdoing · §243

Cupping while fasting: three ways of treating conflicting reports · §246

Deferred animal barter: conflict can concern scope as well as authenticity · §256

Blocking the means

deathbed divorce; comparison with remote welfare reasoning · §217

Book structure

relocation of discussions · §207

avoiding misplaced discussions · §256

abridgement and original completion · §258

Booty

thread and needle · §191

threads and greater amounts · §215

Branches of law (furūʿ)

allocation of individual cases · §48

Bukhārī, al-

accurate copies · §105

reliance on authority · §233

Capacity

condition rather than obligatory act · §23

physical conditions of an act · §33

understanding the address · §38

reason and puberty · §42

impossibility of the impossible · §45

acquired conditions · §50

impossible commands · §52

Bidāya: Financial maturity: an operative condition or its official recognition? · §55

Cases

inexhaustibility · §253

Cats

circulation among people · §212

Causality
human proximate and remote agency · §45
legal signs versus perceptible causes · §55
vegetation called dew · §164

Causes and signs
manifestation of rulings · §54
appointed legal signs · §55
prohibiting cause remains · §60

Caution
danger of adding to the Law · §246

Certainty
priority over apparent wording · §38
psychological production · §76
graded acquisition · §77
degrees · §125
agreement and transmission · §130
understood meaning · §214

Change of attributes
change of ruling · §142

Children
guardian's financial responsibility · §38
instruction in prayer · §38
transmission · §84
testimony about injuries · §84

Choice (takhyīr)
act and time · §18
exhausted alternatives · §21
equipollent harms · §53

Chronology
evidence of solitary reports · §126
determining abrogation · §129
general and specific evidence · §181
authorial completion in 552 AH · §258
copying in 606 AH · §colophon

Claimant and defendant
burden of proof · §141

Clarification (bayān)
general definition · §159
time of need · §160
questions and delay · §161
misleading apparent meanings · §162
delayed specification · §163

Clientage (walāʾ)
emancipator · §195

Coercion (ikrāh)
compliance and disobedience · §47

Collective obligation
dissemination · §113
preservation of sources · §145
division of intellectual labour · §250
renewed in every generation · §253

Commands (amr)
relation to prohibition of the contrary · §32
eternal command and future subjects · §41
prior to fulfilment of a condition · §49
a Companion's interpretation · §69
obligation to warn · §82
distinction from requests · §152
transition · §196
superior and subordinate · §197
obligation and recommendation · §198
immediacy and delay · §198
repetition · §198
method of inquiry · §199
imperative form · §200
obligation presumed cautiously · §200
one performance · §201
contextual timing · §201
related questions · §202
after prohibition · §203
sufficiency and repetition · §205
symmetry with prohibitions · §206
place within legal hermeneutics · §209

Community

protection from error · §131

two or three surviving jurists · §132

temporal reference · §134

earlier generations · §135

Companions

implicit legal competence · §3 · §4

disputed authority of opinions · §62

levels of reporting language · §68 · §72

requests for corroboration · §83

rejection of reports · §88

general probity · §98

civil wars · §99

assertions of abrogation · §127

direct observation · §136

opinions not independently binding · §144

governing the general by the specific · §182

reports about analogy · §225

consensus on evidential preference · §257

Compensation

Bidāya: Foetal compensation: the identity of the right-holder matters · §211

Bidāya: A physician's mistake: compensation need not imply moral wrongdoing · §243

Concession (rukhṣa)

interpretation of fasting verses · §58

definition · §60

Concomitance

positive and negative · §220

positive (ṭard) · §222

negative (ʿaks) · §222

Conditions (shurūṭ)

acquired legal conditions · §49

legal and existential · §50

completion of worship · §117

Conflicting evidence

criticism and attestation · §96

assertion and uncertainty · §107

three proposed responses · §246

original freedom from obligation · §247

Conjunction wāw

shared and distinct meanings · §187

Consensus (ijmāʿ)

deferred prayer and death · §25

disputed historical claims · §111

evidence of an earlier abrogator · §122

chronological evidence · §129

definition · §130

strengthening solitary reports · §130

meeting contemporaries · §130

knowledge of earlier agreement · §130

Qurʾānic and prophetic warrant · §131

revealed rather than numerical warrant · §132

qualified jurists and laypeople · §133

contemporaneous scope · §134

agreement after disagreement · §135

analogy as a basis · §136

dissent of one jurist · §137

tacit agreement · §137

extinction of the generation · §139

later dissent · §139

silence and nonunanimity · §225

avoiding contradiction of an established consensus · §234

Contextual indications (qarāʾin)
shifting prohibition to disapproval · §29
length of companionship · §68
number of informants as one factor · §75
converging reports · §77
solitary reports · §79
children's testimony · §84
individual assessment · §90
silence and coercion · §102
collective omission · §108
access to the Prophet · §123
silent approval · §137
weight of early opinions · §144
nonverbal kinds · §150
selecting senses · §153
degrees of clarity · §155
particularizing a general statement · §174
interpersonal relations · §197
degrees of prohibitive force · §208
recognised legal genus · §213

Contracts
defective and void · §56

Contradiction
false dichotomies · §113
relative to the inquirer, not the Law · §247

Contrariety
intermediates and negation · §26 · §34
same thing, time, and respect · §28
distinct respects of one act · §31
obligation and prohibition · §32
legal and perceptible · §33
exhaustive opposites · §52

Contrary implication
weaker than generality · §189
definition · §194
descriptive qualification · §195
condition · §195
restrictive particles · §195
endpoint · §195

Conversation
intelligibility · §186

Conversion
remission of previous obligations · §51

Correctness and error
question of universal correctness · §237
objections to universal correctness · §238
author's rejection of universal correctness · §239
rejection of subjectivism · §241
error distinguished from sin · §242
nonculpable error · §243
decisive evidence · §244
determinate but fallibly known truth · §245

Cow of the Israelites
successive questions · §163

Craft (ṣināʿa)
disciplined method · §1
compass and straightedge analogy · §2

Crescent sighting
Bedouin testimony · §89

Culpability
psychological impediments · §244

Dāwūd al-Ẓāhirī
reporting commands · §69
general and specific texts · §181

Definite article
generality · §170

Definitions
legal judgement · §10
objections that do not affect practice · §211

Derived rulings
produced rather than memorised · §235

Disagreement
verbal disputes · §22

Disapproval (karāha)
definition · §17
distinguished from unlawfulness · §208

Discourse
verbal and understood indications · §239

Discretionary punishment (taʿzīr)
reasonable risk · §25

Disposition
moral conduct · §86

Divine attributes
istiwāʾ and place · §168

Divine knowledge
contingent choice · §19

Divine unity
Q 112:1 · §157

Divorce
during menstruation · §28
remarriage after third divorce · §195
inheritance following deathbed divorce · §217
Coerced divorce: voluntary utterance is not sufficient freedom · §47
Menstrual divorce: a forbidden act may still have legal effect · §206
Deathbed divorce: blocking an evasion without erasing doctrinal difficulty · §217
Triple divorce after mutual imprecation: the limits of tacit approval · §227
Bidāya: Coerced divorce: voluntary utterance is not sufficient freedom · §47
Bidāya: Menstrual divorce: a forbidden act may still have legal effect · §206
Bidāya: Deathbed divorce: blocking an evasion without erasing doctrinal difficulty · §217
Bidāya: Triple divorce after mutual imprecation: the limits of tacit approval · §227

Dower
remitting half · §158
Bidāya: Minimum dower: clarification cannot be postponed beyond need · §160
Bidāya: Dower and the theft threshold: verbal resemblance is not one legal meaning · §223

Dual
distinct grammatical form · §180

Earlier revealed law
disputed authority · §62
authority · §145

Effective ground (ʿilla)
common feature · §210
expressly stated · §212
underdetermination · §218
methods of identification · §220
correlation is not sufficient warrant · §222

Ellipsis
implicit breaking of the fast · §58

Emancipation contract (kitāba)
interpreting a report · §171

Equivocation (ishtirāk)
equally available senses · §153
opposites · §158
ṣarīm as night or morning · §161
conventionalized transfer · §168
not inclusive generality · §177
obligation and recommendation · §201

Error
distinction from deliberate falsehood · §132

Evidence
wording and transmission distinguished · §182
objective signification · §241
degrees of clarity · §244

Exception (istithnāʾ)
attachment · §183
connected and disconnected · §184
multiple sentences · §184
theoretical objection · §185
semantic explanation · §186
scope across clauses · §187
numerical proportion · §188

Existence
goat-stag as a non-existent composite · §75

Expertise
comparative competence · §251

Expiations
consecutiveness in a variant reading · §64
scope of analogy · §219

Faith
assent without rational inquiry · §235

False accusation (qadhf)
repentance and testimony · §187

Fasting
restraint as an act · §48
feeding alternative · §120
intention during the night · §172
validity and completeness · §194
A traveller who fasts: an implied condition in the verse · §58
Cupping while fasting: three ways of treating conflicting reports · §246
Bidāya: A traveller who fasts: an implied condition in the verse · §58
Bidāya: Cupping while fasting: three ways of treating conflicting reports · §246

Fāṭima bint Qays
report · §88

Fear or awe
suppressing an opinion · §137

Figurative usage (majāz)
omission and addition · §154
magnification · §180

Forgetfulness
pardon · §243

Garlic
mosque attendance · §191

Gender
masculine plural · §178

Generality
small and large groups · §82
authority after specification · §135
continuity until specification · §142
linguistic reality · §169
plurals, genera, and particles · §170
specific intention · §174
disputed applications · §175
contrast with equivocation · §177
people and believers · §178
conclusion · §190
extending the specific · §225
clarification by action · §228

Genus
exception from another genus · §184

Ghazālī, Abū Ḥāmid al-
structure retained but method qualified · §7
logical introduction omitted · §9
placement of prohibition question · §30
parallel text as control · §39
quoted definition of the Book · §63
criticism of arguments · §81
extended disputation · §140
minimum plural · §179
command after prohibition · §203
withholding judgement · §229
correctness of every mujtahid · §240
argument from absence of sin · §242

Ghusl
intercourse and emission · §246

Gold and silver vessels
common ground · §212

Goodness and badness
intrinsic and relational attributes · §11
consensus about truthfulness · §12
insufficiency of opposing arguments · §13

Guardian

marriage bond in Q 2:237 · §158

permission to marry · §171

Bidāya: A remoter guardian: invalidity, permission, or ratification · §56

Bidāya: An absent father: welfare within a structured legal situation · §146

Bidāya: Guardianship: a disputed condition cannot be established by ambiguity alone · §171

Hadith collections

corrected reference copy · §233

Ḥanafīs

certainty and obligation · §17

prohibited acts and validity · §28

distinction between fāsid and bāṭil · §56

Harm

comparing coerced alternatives · §47

choosing the lesser injury · §53

Head-wiping

minimum extent · §23

Homicide

coercion by threat of death · §47

unavoidable injury · §53

Ḥudaybiyya

shaving and imitation · §229

Hunting

after consecration · §203

Identity

numerical and specific · §118

Ijtihād

qualifications of the jurist · §5

correctness and error · §11

degrees of coercion · §47

unresolved hard cases · §53

disagreement without unbelief · §64

contextual variation · §90

sinlessness and correctness · §99

case-sensitive report evaluation · §108

access to original wording · §110

place in the book · §230

definition · §231

partial and unrestricted competence · §236

determinate object of inquiry · §237

obligation proportionate to capacity · §245

relation to taqlīd · §248

required in every period · §253

possession versus exercise of competence · §254

Illness

postponing the fast · §57

dangerous fasting · §58

Impossible obligation

argument from indeterminate evidence · §240

Indeterminacy

suspension of interpretation · §214

equally plausible grounds · §218

clarification by action · §228

not independent legal evidence · §241

Indeterminate wording (mujmal)

classification · §151

understood meaning · §155

no independent ruling · §160

unspecified restriction · §174

Indication (dalāla)

rules of evidence · §2

cumulative evidence · §131

wording and context · §148

parts of compound expressions · §152

practical classification · §156

Indirect expression (kināya)
low ground and touching · §164
intercourse · §167

Induction (istiqrāʾ)
principles from the Companions' opinions · §4
establishing meanings · §70
Arabic usage · §161
incomplete generalization · §163
reception by Companions · §200

Infallibility
proof of protection · §144

Inference (istidlāl)
opening invocation · §1

Infinite regress
obligation of inquiry · §14
successive acts of willing · §44

Innovation
treating derivative opinions as principles · §252

Inquiry (naẓar)
revealed obligation · §1
obligation before acceptance of revelation · §13
regress of justifying inquiries · §14

Intelligible meaning (maʿqūl)
indication · §149

Intention
resolving to perform a deferred duty · §22
prostration before an idol · §31
obedience as the purpose of action · §43
coerced act and reward · §47

Interdiction
Financial maturity: an operative condition or its official recognition? · §55

Interpretation (taʾwīl)
rational impossibility as a control · §49
Qurʾān 2:106 · §119
classification · §151
strength of contrary evidence · §166
degrees of remoteness · §167
certainty · §168
evidential proportion · §170
strained specification · §171

Interpretive wrongdoing
testimony · §91 · §99
probable evidence · §92

Intoxication
responsibility and divorce · §38
incipient intoxication · §39
advance prohibition · §40

Irrigation
different levy rates · §173

Judgement (ḥukm)
place in uṣūl · §5
four questions · §10
divine address · §11
fivefold classification · §17
universal questions · §24
divisions concluded · §35
lawgiver, subject, and act · §36
reliance on testimony · §97
not attributes of essences · §223

Jurist
qua jurist · §116

Juristic preference (istiḥsān)
relation to analogy · §146

Justice
the balance · §167

Juwaynī, al-
al-Risāla al-Niẓāmiyya · §45

Karkhī, al-
alternative days of fasting · §58
forgotten reports · §107

Khārijites
transmission · §91

Knowledge
theoretical and practical ends · §2
instrumental or criterial science · §2
definition of knowledge · §9
necessary and acquired · §14
necessity versus universal agreement · §15
access to the occurrence of rulings · §55
future possibilities not objects of tawātur · §75
inference and immediacy · §76
condition of culpability · §243

Language
Bedouin speech and metre · §3
conventional and legal usage · §27
figurative legal usage · §57
literal and figurative speech · §65
arabicized loanwords · §65
native competence as evidence · §69
induction and transmission · §70
literal reporting formulae · §101
figurative reporting formulae · §103
form and understood meaning · §149
noun, verb, and particle · §152
simple and compound · §152
original assignment (waḍʿ) · §153
riddles and mockery · §161
prevalence of usage · §168
cross-linguistic signification · §169
established and extended usage · §180
occurrence and explanation · §185
economy of expression · §188
form and meaning · §192
ordinary communication · §213
prerequisite for inquiry · §234

Lawgiver (ḥākim)
God as source of obligation · §37
intelligibility of commands · §45

Legal convention
burden of proof · §177
relation to language · §199

Legal practice
danger of inoperative rulings · §254

Legal responsibility (taklīf)
burden and terminology · §27
constituent elements · §36
the act commanded · §43
supplementary questions · §46
potential fulfilment · §50

Legal terminology
acquired meanings · §153
explanation before performance · §163

Legislation
distinguished from interpretation · §217

Livelihood
universal expertise would obstruct it · §250

Logic
disciplinary separation · §9
non-convertibility of predicates · §12
non-entailment between contraries · §26

Lost reports
evidence from consensus · §136

Make-up performance (qaḍāʾ)
separate command · §51
literal and extended senses · §57
expected death does not end the time · §59
fasting intention · §172
renewed command · §204

Mālik
attribution and criticism · §217

Manuscript voices
copyist and owner distinguished from author · §colophon

Marriage

witnesses of probity · §189

prohibited degrees · §194

intelligibility of legal grounds · §219

Marriage: one form of act, different legal rulings · §18

Proposing over another proposal: prohibition and contractual effect · §28

A remoter guardian: invalidity, permission, or ratification · §56

An absent father: welfare within a structured legal situation · §146

Minimum dower: clarification cannot be postponed beyond need · §160

Guardianship: a disputed condition cannot be established by ambiguity alone · §171

Dower and the theft threshold: verbal resemblance is not one legal meaning · §223

Mass transmission (tawātur)

conditions · §78

meaning rather than wording · §131

universally known duties · §133

Memory

knowing where to consult evidence · §232

Menstruation

fasting and make-up liability · §57

endpoint of abstinence · §195

Mercy

pardon of juristic error · §245

Miracle

recognition of prophecy · §15

Muʿādh

exercise of judgement · §126

Mujtahid

knowledge of sources · §231

inferential instruments · §231

Qurʾānic competence · §232

hadith competence · §233

awareness of consensus · §234

disputed theological prerequisite · §235

qualifications proportionate to the question · §236

preserving and teaching legal practice · §250

Mursal reports

definition and authority · §111

Muslim

reliance on authority · §233

Musnad reports

connected transmission · §111

Muʿtazilites

moral rationalism · §11 · §12

pre-revelation acts · §16

welfare and the best · §19

nonexistent things · §211

rulings as attributes of essences · §238

Nabīdh

interpretive disagreement · §92

Narrator criticism (jarḥ)

organization · §94

reasons · §96

Necessity

wine for choking and carrion · §60

practical use of probable evidence · §166

Negation

general scope · §170

distinguished from privation · §211

Nonexistence

mental existence and comparison · §211

Oath expiation

alternative acts · §187

Obligation
what exceeds capacity · §15
definition and threat of punishment · §17
farḍ and wājib · §17
determinate and alternative acts · §18
extended times · §18 · §21 · §22
alternative duties · §19
expiation alternatives · §20
extended prayer times · §20
resemblance to recommendation · §21
indispensable means · §23 · §33
for itself and for another · §23
death before the end of the time · §25
punishment for omission · §242

Occasion of revelation or report
general wording · §176

Offences and injuries
Foetal compensation: the identity of the right-holder matters · §211
A physician's mistake: compensation need not imply moral wrongdoing · §243

Omission (ḥadhf)
signification · §193
certain supplied meaning · §194

Omission (tark)
active restraint and mere absence · §48

Ordinary usage
distinction from legal meanings · §200

Original nonliability (barāʾa)
definition · §17
figuratively called a source · §62
not an abrogated revelation · §128
rational presumption · §141
matters without indication · §239

Original requirement (ʿazm)
definition · §60

Parents
prohibition of uff · §191
prohibition of reproach and greater injury · §215

Penalties
added lashes · §118
confinement, lashes, and stoning · §124
scope of analogy · §219

Permission (ibāḥa)
before revealed address · §16
definition and original non-liability · §17
outside the genus of demand · §26
not itself commanded · §27
not universal obligation · §227
not inferred from contradiction · §246

Pilgrimage
immediate or deferred performance · §25
place · §204
completing an invalidated rite · §205
taking the rites from the Prophet · §228
Pilgrimage now or later: a control against a simplistic application · §201
Completing ʿumra does not by itself prove an initial duty to begin it · §204
Bidāya: Pilgrimage now or later: a control against a simplistic application · §201
Bidāya: Completing ʿumra does not by itself prove an initial duty to begin it · §204

Plural
minimum number · §179
three, two, and one · §180

Poetry
evidence for disconnected exception · §185

Political coercion
apparent agreement · §138

Possibility
choice and foreknowledge · §19 · §20

Practice of Medina
transmission · §77
not numerical majority · §138
intergenerational transmission · §138

Prayer

stillness in bowing · §23

bathhouses and camel resting-places · §31

increase in cycles · §118

no sixth obligation · §141

catching one cycle · §194

manner of performance · §228

The basmala: Qurʾānic wording and membership in a sūra · §64

A mistaken qibla: required success or adequately conducted inquiry? · §237

Bidāya: The basmala: Qurʾānic wording and membership in a sūra · §64

Bidāya: A mistaken qibla: required success or adequately conducted inquiry? · §237

Preference (tarjīḥ)

indefinitely varied grounds · §93

additional knowledge · §96

place in the book · §230

same-kind and different-kind evidence · §256

contextual and virtually unlimited · §256

stronger probable judgement · §257

Pre-revelation acts

permission, suspension, and prohibition · §16

Presumption of continuity (istiṣḥāb)

five uses · §142

Private consultation

preliminary charity · §119

Probability (ẓann)

expectation of survival · §25

belief versus objective time · §59

different epistemic roles · §106

weighing indications · §181

preponderant and undecided · §193

understood meaning · §214

obligation to seek preponderance · §237

alleged dependence on personal inclination · §240

liability to mistake · §243

confidence as a practical sign · §250

stronger trust than one's own judgement · §251

introspective recognition of preponderance · §257

Probable indications

certain foundations · §138

Probity (ʿadāla)

definition · §86

major and minor sins · §87

outward Islam · §87

competing arguments · §88

probability of truthfulness · §90

interpretive disagreement · §91

revealed attestation · §98

Prohibition (nahy)

intrinsic attribute or external cause · §28

form and understood meaning · §29

external respects · §31

whether its contrary becomes obligatory · §34

intrinsic qualification and invalidation · §56

invalidity and legal effect · §206

relation to obligation · §207

absolute and qualified · §208

Bidāya: Proposing over another proposal: prohibition and contractual effect · §28

Pronouns

determinate reference · §157

ambiguous reference · §158

Proof

affirmative and negative claims · §141

Prophecy
recognition of a prophetic claim · §13

Prophet
protection from error · §227
certainty grounded in the miracle · §249

Prophetic action
evidence · §150
contextual rather than verbal evidence · §226
explanatory function · §228
peculiar to the Prophet · §229
unspecified legal force · §229
conflict with speech · §229

Prophetic teaching
public clarification · §113
modes of understanding · §148

Puberty
legal sign of maturity · §42

Purification
condition of prayer · §23
command to pray before ablution · §49
general report · §176
Bidāya: Wiping the head: a minimum performance and a contested particle · §23
Bidāya: Intention in ablution: devotional act and intelligible cleansing · §43
Bidāya: Touching women: equivocation, generality and counterevidence · §158

Purification from ritual impurity
Wiping the head: a minimum performance and a contested particle · §23
Intention in ablution: devotional act and intelligible cleansing · §43
Touching women: equivocation, generality and counterevidence · §158

Qibla
change at Qubāʾ · §123
direction as condition · §204

Quantification
minimum denoted by an act-name · §23

Qurʾ
menstruation or purity · §158

Qurʾān
interpretation of 4:43 · §38 · §40
apparent and unambiguous indication · §49
eternal divine speech · §63
boundaries of the transmitted corpus · §64
seven aḥruf · §64
muḥkam and mutashābih · §65
detached letters · §65
establishing formerly recited wording · §121
highest transmitted certainty · §125
incorporating an earlier law · §145
specification by solitary reports · §182
verses containing rulings · §232
completeness and what is passed over · §239

Qurʾānic quotations
conflated wording · §185

Qurʾānic readings
solitary additions and legal effect · §64
plural masākīn · §121

Ranking
internal inconsistency in enumeration · §218

Rational knowledge
grounds of obligation · §13

Recommendation (nadb)
definition · §17
commanded but not obligatory · §27
relation to probity · §86
distinct from obligation · §201

Relation
non-intrinsic moral evaluation · §11

Repetition (iʿāda)
correction of a defective act · §57

Reports (akhbār)
direct hearing and later transmission · §66
explicit direct-hearing formula · §67
attribution without explicit hearing · §68
paraphrase of legal force · §69
linguistic evidence · §70
passive command formula · §71
contemporary communal practice · §72
ranks of attribution · §73

Requests (ṭaliba)
lexical form · §152
equals · §197

Restriction
removal versus recommendation · §203

Revelation
authoritative instruction · §223

Reward and punishment
power to impose obligation · §37
coerced conduct · §47
omission · §48

Ribā
four food commodities · §191
edibility, staple food and measurement · §218

Sacrificial meat
storage · §119

Sales
intelligibility of legal grounds · §219
The sales-session option: what counts as “separation”? · §167
Ribā in foodstuffs: competing identifications of the operative feature · §218
Deferred animal barter: conflict can concern scope as well as authenticity · §256
Bidāya: The sales-session option: what counts as “separation”? · §167
Bidāya: Ribā in foodstuffs: competing identifications of the operative feature · §218
Bidāya: Deferred animal barter: conflict can concern scope as well as authenticity · §256

Ṣāʿ measure
Mālik and Abū Yūsuf · §138

School affiliation
transmitters and independent jurists · §252
critique of the preceding period · §254

Schools
Mālikīs, Shāfiʿīs and Ḥanafīs · §253

Shāfiʿī, al-
prohibited acts and validity · §28
basmala · §64
transmitter criticism · §91
cross-source abrogation · §124
interpretation of an attributed position · §125

Sībawayh
use of grammatical evidence · §180

Signs
predominance rather than exceptionless correspondence · §42

Silence
nonacceptance is not necessarily criticism · §97
multiple possible reasons · §137

Silver vessels
eating and drinking · §191

Sinlessness
not required of transmitters · §87

Slavery and emancipation
inclusion in human terms · §178
male and female slaves · §216

Slave women
marriage and dower · §171

Solitary reports
exceptional certainty · §79
organization · §80
rational possibility · §81
legal authorization · §81
Qurʾānic warrant · §82

Sophistry
denial of evidential force · §241

Sources of law
relation to derivation · §5
principles and branches · §6
Book, Sunna, consensus, and original negation · §62
two revealed sources · §114
fourfold account · §143
rejected independent grounds · §146
three principal transmitted sources · §231
earlier juristic opinions not revealed sources · §252
earlier opinions cannot replace revelation · §254

Speaker and addressee
contextual understanding · §161
error and deception · §162

Specification (takhṣīṣ)
distinction from abrogation · §126
remainder of a general expression · §135
intermediate plausibility · §172
agriculturally taxed kinds · §173
reduction to one · §179
relation to conflict · §181
earlier and later evidence · §182
distinction from exception · §183
contextual indication · §225

Specific expressions
transition · §190
relative scope · §191

Speech
inward command and verbal form · §198

Stoning verse
evidential reservations · §121

Substitution (ibdāl)
synonyms · §109
understood import · §154
universal and particular · §165
implied universal · §186
particular for universal · §191
particular expression for universal meaning · §212
conditions of warrant · §213
a named individual for a class · §216
limits of inferential recovery · §221

Sufficiency (ijzāʾ)
complete compliance · §205

Sunna
authority through the prophetic miracle · §66
ambiguous attribution · §71
recommended observance · §117

Sunni theologians
moral predicates · §11

Supplication
subordinate to superior · §197

Suspension of judgement
before revelation · §16
uncertain scope · §187
practical limits · §246

Syllogism
certain deduction contrasted with reports · §75

Synonymy
certain and inferred · §109

Tacit approval (iqrār)
knowledge of a practice · §72
teaching · §102
evidence · §150
contextual rather than verbal evidence · §226
permissibility · §227
approval of a legal judgement · §227

Taqlīd
asking a jurist · §105
accepting another's paraphrase · §110
lay participation · §133
following fallible authority · §144
place in the book · §230
transition from inquiry · §248
definition · §249
ordinary people · §250
by an independent jurist · §251
limits of analogising from an imam's opinions · §252
scope and limits · §255

Teaching and learning
introductory questions · §8
one science at a time · §9

Temporary marriage
abrogation · §120

Testimony
relation to transmission · §81 · §83 · §95
non-Muslim witnesses · §85
doctrinal disagreement · §92
witness and judge · §106

Testing and division
identifying a legal ground · §220
exclusion of rival grounds · §221
limits without contextual warrant · §225

Textual difficulties
defective prohibitive-form clause · §29
المستثنى and المنتشي · §39
acquisition and belief in obligation · §44
command and commander · §71
defective readings · §89
supplied paragraph numbering · §143
lacuna and marginal addition · §145
until and beyond · §160
omitted conjunction · §192
conjectural supplement · §224
incomplete classification · §229

Textual explicitness (naṣṣ)
exclusion of alternatives · §67
classification · §151
understood meaning · §155
simple and compound · §157
scarcity · §166

Theology (kalām)
proper place of foundational proofs · §37
questions excluded from uṣūl · §41 · §63
divine action · §115
first obligation of rational inquiry · §235

Threat
imperative usage · §200

Time
temporary and perpetual prescriptions · §115
expiry and repeal · §128
constitutive condition of worship · §204

Timely performance (adāʾ)
distinct from make-up liability · §51
definition · §57

Touching the penis
purification report · §112

Touching women
intercourse or contact · §167
combining incompatible readings · §177

Transfer (istiʿāra)
resemblance and relation · §153
sky and rain · §162
kinds · §164
relation to substitution · §165

Translation
Arabic and other languages · §109
limits of substitution · §110

Transmission
dispersal and disagreement · §3
necessary knowledge · §15
Qurʾānic certainty · §64
recurrent and solitary routes · §66 · §74
language and widespread usage · §70
definition of tawātur · §75
sensory and temporally determinate objects · §75
no fixed numerical threshold · §75
sensory basis · §77
reception and performance · §80 · §100
reporting from a narrator · §97
five levels · §100
direct hearing (samāʿ) · §101
reading before the teacher · §102
permission and direct hearing · §105
certainty of direct hearing · §106
denial by the source · §107
forgetfulness · §107
meaning rather than wording · §109
excerpts and context · §110
ʿanʿana · §111
duty to disseminate · §112
time and place · §113
wording and interpretation · §127
location of relevant preference rules · §256

Transmitters
qualifications · §80
number · §83
accurate retention (ḍabṭ) · §85
Islam · §85
conditions and preferences · §93
age and conversion not decisive · §129
reliance on an expert's accreditation · §233

Travel
postponing the fast · §57
validity of fasting during travel · §58

Trust
probable truth of an authority · §249

Truthfulness
reporting formulae · §102

Umm walad
sale · §142

Unbelievers
liability for branches of law · §49
inclusion in human terms · §178
distinct from lesser culpability · §244

Understood import (mafhūm)
division · §149
contextual certainty · §193
location of relevant preference rules · §256

Universal and particular
practical knowledge · §2
inductively established principles · §4
universal craft · §6
hard cases do not refute a universal · §53
incomplete but genuine knowledge · §163
semantic direction · §165
relation to general wording · §169
contextual enlargement · §186
recovering the relevant universal · §221

Unknown transmitters
investigation · §88
outward Islam · §89
identification · §111

Unqualified and qualified (muṭlaq, muqayyad)
qualification after an absolute command · §29
same context · §189
different contexts · §189

Usurped land
validity of prayer · §31
leaving a cultivated field · §53

ʿUthmān
killing and interpretive error · §99

Validity
prohibition and invalidation · §28
place in the four-part scheme · §54
theologians and jurists · §56
discharge of make-up liability · §56
conditions of discharge · §205

Vows
fasting · §172

Water
well of Buḍāʿa · §176

Welfare reasoning (istiṣlāḥ)
limits · §146

Welfare (ṣalāḥ)
equal alternatives · §19

Whole and part
integral action · §117

Widely accepted propositions (mashhūrāt)
not convertible with rational truth · §12

Widespread need (ʿumūm al-balwā)
solitary reports · §77 · §112
contextual assessment · §113

Will (irāda)
desire and hope or fear · §44

Wine drinking
comparison with false accusation · §223

Written transmission
handing over (munāwala) · §104
handwriting · §105
verified copies · §105

Ẓāhirīs
legal inference without analogy · §6
fasting on other days · §58
requirement of actual wording · §69
consensus · §136
continuity and rejection of analogy · §142
critique of analogical warrant · §223
admitting meaning-based indication · §224
original freedom from obligation · §238
equal evidence · §247

Zakāt
advance payment · §58
crops and vegetables · §173
grazing sheep · §195
Zakāt on a child’s property: worship or a claim upon wealth? · §38
Jewellery: resemblance to usable possessions or to monetary wealth? · §214
Bidāya: Zakāt on a child’s property: worship or a claim upon wealth? · §38
Bidāya: Jewellery: resemblance to usable possessions or to monetary wealth? · §214